



POLICE DEPARTMENT

September 23, 2014

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Efrain Santiago
Tax Registry No. 923115
26 Precinct
Disciplinary Case Nos. 2012-7892 & 2013-10062

The above-named member of the Department appeared before me on March 27, 2014, charged with the following:

Disciplinary Case No. 2012-7892

1. Said Police Officer Efrain Santiago, while assigned to the 26th Precinct, on or about and between December 2010 and July 2012, did knowingly associate with Person A, a person reasonably believed to be engaged in, likely to engage in, or to have engaged in criminal activities.

P.G. 203-10, Page 1, Paragraph 2(c) – GENERAL REGULATIONS,
Interim Order No. 26, Series 2012, PUBLIC CONTACT – PROHIBITED
Revision to Patrol Guide 203-10, CONTACT
Page 1, Paragraph 2(c)

2. Said Police Officer Efrain Santiago, while assigned to the 26th Precinct, on or about April 2011, did wrongfully and without just cause engage in off-duty employment without authority or permission to do so, in that said Police Officer Santiago was employed by Person B.

P.G. 205-40, Page 1, Paragraph 1 – PERSONNEL MATTERS,
OFF DUTY EMPLOYMENT

3. Said Police Officer Efrain Santiago while assigned to the 26th Precinct, on or about and between December 2011 and January 2012, did wrongfully and without just cause engage in off-duty employment without authority or permission to do so, in that said Police Officer Santiago was employed by Person A.

P.G. 205-40, Page 1, Paragraph 1 PERSONNEL MATTERS,
OFF DUTY EMPLOYMENT

Disciplinary Case No. 2013-10062

1. Police Officer Efrain Santiago while on-duty and assigned to the 26th Precinct, on or about February 20, 2012, in the vicinity of [REDACTED], did after responding to a motor vehicle accident fail to notify a Communications dispatcher that a tow was needed and allowed an unauthorized tow company to remove a vehicle from the scene. (*As amended*)

P.G. 217-09 DIRECTED ACCIDENT RESPONSE PROGRAM (D.A.R.P.)

The Department was represented by Joshua Kleiman, Esq., Department Advocate's Office, and Respondent was represented by John Tynan, Esq., Worth, Longworth & London, LLP. Respondent, through his counsel, entered a plea of Guilty to the subject charges and testified in mitigation of the penalty. A stenographic transcript of the mitigation record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent, having pleaded Guilty, is found Guilty as charged.

SUMMARY OF EVIDENCE IN MITIGATION

Respondent, a 16-year member of the Department, is currently on full duty status in the 26 Precinct. During the course of his career, he has made over 130 arrests and assisted in "close to 200" arrests. Since being served with the pending charges, he has been transferred from regular patrol to the precinct's anti-crime unit.

Respondent testified that he first met Person A while walking downtown in 2006 or 2007. He did not know anything about Person A's background when they first met, and they became friends. Approximately a year later, he learned that Person A had a criminal record. Respondent was aware of the Department's policy on criminal association but he nevertheless continued a relationship with Person A because Person A was a good person. He tried to help Person A get a job at U-Haul.

Respondent described his relationship with Person A, between December 2010 and July 2012, as a friendship in which "we hung out, we worked together." They would get together "about two or three times a month." Respondent visited Person A at his home in Chelsea and worked with Person A by helping him "do security." He allowed Person A to regularly borrow his car. Respondent went in to U-Haul to be a character reference for Person A when Person A applied for a job there.

Person A had informed Respondent that he was on parole. ~~One reason~~ Respondent continued his relationship with Person A was because Person A said that he used to work for the mob. Respondent explained, "I wanted to learn how a Spanish guy worked for the mob. . . . Whatever I learned, I use at work."

Respondent never submitted off-duty employment paperwork for the security job with Person A. Respondent ceased his relationship with Person A once the Department instructed him to do so. He has not had any contact with Person A since his 2012 official Department interview.

While Respondent worked with him, Person A also asked him to do security work for Person B. The work entailed Respondent staying with Person B from 9:00 a.m. until 6:00 p.m. one day, and Respondent got paid for it. Respondent did not work for

Person B again because he learned why Person B needed security. Person B was a gypsy who practiced fortune telling. Gypsies had a rule that they could not work within three blocks of each other. Person B was not complying with this rule and needed protection from other gypsies. Respondent did not want to get involved in a “gypsy war.”

On February 20, 2012, Respondent was working with Police Officer John Blanc. They had worked together previously, and Blanc “had a lot more” experience as a police officer than Respondent. They responded to a traffic accident that day where there were several damaged cars. Blanc, as the senior officer, took the lead in handling the accident and paperwork. Respondent did not make any contact with the radio dispatcher about the fact that a second tow truck was needed and that there was an unauthorized tow vehicle present at the scene. Respondent believed at the time that Blanc had “made the calls for all the trucks,” but during his official Department interview, he became aware of the Directed Accident Response Program (DARP) and now knows that he should have contacted the dispatcher at the scene.

PENALTY

In order to determine an appropriate penalty, Respondent’s service record was examined. See *Matter of Pell v. Board of Education*, 34 N.Y. 2d 222 (1974). Respondent was appointed to the Department on August 31, 1998. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Advocate and Respondent's attorney originally negotiated a penalty of 40 vacation days. The prior administration rejected that agreement and returned this case to add dismissal probation.

Respondent's attorney argued Respondent should receive the original negotiated penalty. He indicated that Respondent's behavior was an aberration and that he does not need retraining or to be monitored.

The Advocate read into the record that, in a September 2012 evaluation, Respondent was described as "among the most active uniformed members of the service assigned to the command who keeps himself up-to-date pertaining to the current crime trends." In a September 2013 evaluation, Respondent was described as "an officer who is not afraid to take necessary police action and was recognized as the precinct's cop of the month." Respondent's cop-of-the-month status was related to him being highlighted in a Daily News article in February of that year. The article described Respondent as "a quick moving west Harlem cop who nabbed a pistol packing 15-year-old during the height of [a] blizzard" and "who moments earlier had given a lift to a woman struggling through the snow with a baby stroller."

The Advocate first received Respondent's case for criminal association and off-duty employment charges as part of an IAB investigation involving Respondent and Police Officer Edward Carey. Both officers worked off duty employment for Person B and Person A and were friendly with Person A. However, the Advocate stressed that the conducts of these two officers, Respondent and Carey, were different. Because Carey was more culpable, the Advocate maintained that Respondent should receive a lesser penalty than Carey.

While Respondent was forthcoming in his official Department interview about having full knowledge of Person A's criminal history, Carey was not. After both were ordered to stop contact with Person A, Carey continued to remain in contact with Person A. Respondent, however, testified he ceased contact with Person A.

The Advocate recommended dismissal probation for Carey. The Police Commissioner approved the one year dismissal probation along with a penalty of 45 vacation days for Carey in *Case No. 6457/11*. The Advocate's original recommendation was that Respondent forfeit 40 vacation days, but be spared the more significant penalty of dismissal probation.

The Advocate conducted extensive research on recent precedent for the criminal association charge, the off-duty employment charges and the charge related to the Directed Accident Response Program (DARP) for calling tow companies.

In similar off-duty employment cases, the Advocate stated, the penalty is about a 15 vacation day forfeiture. As an example, he cited *Case No. 86589/10*, (Feb. 8, 2011) in which a six-year police officer with one prior disciplinary record negotiated a penalty of 15 vacation days for engaging in unauthorized off-duty employment as a security guard.

The Advocate cited three cases of criminal association where the facts were similar to Respondent's case. In *Case No. 2316/10*, (Jan. 17, 2012), an eight-and-a-half-year police officer with no prior disciplinary record negotiated a penalty of 15 vacation days for criminal association. This officer maintained a friendly relationship and purchased a motorcycle from an individual who he knew had been arrested for federal criminal charges. In *Case No. 7299/12* (July 22, 2013), a nineteen-year detective with no prior disciplinary record negotiated a penalty of 13 vacation days for visiting and having

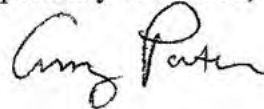
telephone conversations with an individual incarcerated on Rikers Island. In *Case No. 7296/12* (April 30, 2013), a thirteen-year detective with no prior disciplinary record negotiated a penalty of 15 vacation days for associating with two individuals who had felony records involving firearms charges.

Similar DARP cases sharing similar facts with this Respondent, the Advocate maintained, have been adjudicated as B CDs with a mandatory forfeiture of five vacation days. (He cited *Case Nos. 10067/13* and *10070/13*.)

After reviewing the estimated penalty for these four different charges, the Advocate determined that a penalty of 40 vacation days would be appropriate. At the end of this hearing, the Advocate deferred to the Court whether Respondent should be placed on dismissal probation.

Considering Respondent's excellent performance history and his forthright admissions during his official Department interview and this hearing, dismissal probation seems excessive. While Respondent made serious mistakes in judgment, he did not get involved in any criminal activity. There was no indication that Respondent has a propensity to or will ever repeat this misconduct. Therefore, it is recommended that Respondent forfeit 40 vacation days.

Respectfully submitted,



Amy J. Porter
Assistant Deputy Commissioner - Trials

APPROVED

DEC 15 2014

WILLIAM J. BRATTON
POLICE COMMISSIONER

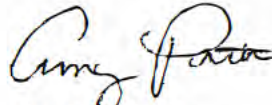
POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER EFRAIN SANTIAGO
TAX REGISTRY NO. 923115
DISCIPLINARY CASE NOS. 2012-7892 & 2013-10062

For Respondent's annual evaluations in 2013, 2012 and 2011 he received an overall rating of 4.5, "Extremely Competent/Highly Competent." [REDACTED]

[REDACTED] In 2005 Respondent pled guilty to assault and possession of a knife, forfeiting 17 vacation days.

For your consideration.



Amy J. Porter
Assistant Deputy Commissioner – Trials